

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 9, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. Allen and Mr. Collins, agenda items #16 and #17 were removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 25, 2012. Motion (per Consent Agenda) carried.

Mr. Brown, Mr. Collins and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services, Bicycle Station, Inc. and Radio Station KYOY FM respectively) and vacated Council Chambers. Mr. Pierson moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry, Doug Vetter, City Engineer, provided information pertaining to a voucher payable to AVI Engineering for professional services involving the Norris Viaduct Detention Pond Project, noting design services are to assist with alleviation of excess drainage and that anticipated project construction will be later this year or next year. He advised awareness of the problem was during reconstruction of Norris Viaduct. Upon inquiry, Mr. Vetter and Matt Ashby, Planning Services Director, provided information on a voucher payable to Chase Park Grants for strategic grants planning services involving the Lower Capital Basin Project. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown, Mr. Collins and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a restaurant liquor license application filed with the City Clerk's Office for 2 Doors Down 2, Inc. d/b/a 2 Doors Down 2, 1802 Dell Range Boulevard, Suite 2, Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from HR-2 High Density Residential-Developing District to

MR-2 Medium-Density Residential-Developing District for Lot 21, Block 14, Saddle Ridge, Cheyenne, Wyoming, to be known as a portion of Saddle Ridge, Fourth Filing (located at the southeast corner of the intersection of Whitney Road and Countryside Avenue). Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body. (#3953)

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from CB Community Business District to LI Light Industrial District for Lots 2, 3, and 4, Block 397, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Dillon Avenue and W. 17th Street). Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body. (#3954)

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of the North Half of the North Half of the Northeast Quarter of the Northeast Quarter of Section 11, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming (generally located at the I-25/I-80 Interchange, a.k.a. 4121 W. 5th Street). Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body. (#3955)

Ordinance granting a Franchise by the City of Cheyenne to High West Energy, Inc., its successors and assigns, the right to furnish, sell and distribute electricity to the City and all persons, businesses, and industry within a portion of the City High West’s certificated territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Randy Reed, representative for High West Energy (HWE), advised communications are being held between HWE and Cheyenne Light, Fuel and Power (CLFP) and requested a postponement of the item for a month to continue discussions to possibly propose a modification of the proposed ordinance. It was confirmed the postponement date requested was August 13, 2012. John Sundahl, attorney for CLFP, concurred with Mr. Reed’s comments and spoke in support of the requested postponement to August 13th. James Perrott Macneil expressed his opinion that those present who wished to speak on the item should be allowed to do so and that the mayor should not cast a vote on the item, and commented in favor of competition. Savannah Birkle, Miss Teen Laramie County, commented in support of CLFP, noting its support to numerous community organizations and activities. Upon inquiry regarding whether the governing body would be involved in determining which utility company would provide service to future properties annexed into the City, if the franchise ordinance for HWE is approved, Mr. Reed and Mr. Sundahl provided their opinions of the Public Service Commission’s vs. the governing body’s authority. Thurman King commented on the issue of fairness vs. dollars and spoke in support of quality services he has received over the years from HWE. Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Mr. Brown moved to postpone to August 13, 2012, seconded by Mr. Spiker. Recommendation was made that the City also needs to be “in the loop” with regard to subjects being discussed by HWE and CLFP that may result in modifications to the proposed ordinance as well as the existing franchise ordinance with CLFP. Upon inquiry, Carol Intlekofer, City Clerk, reviewed the

following Council meeting schedule for the agenda item if the motion to postpone was approved: Ordinance would return on the August 13, 2012 City Council meeting agenda for referral back to Finance Committee for review and recommendation on second reading (no discussion or action will be taken at the August 13th meeting); Finance Committee would meet Monday, August 20, 2012 at 11:00 a.m. (Room 122, Municipal Building) to review and vote on a recommendation on the ordinance, and the ordinance would be placed on the August 27, 2012 City Council meeting agenda for anticipated action on second reading. Ms. Intlekofer advised when an agenda item is postponed for a time frame that is more than the next regularly scheduled City Council meeting, the item is referred back to the respective Council committee for review/recommendation. Motion to postpone to August 13, 2012 carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen called for a brief recess to allow those in attendance for the previous agenda item to vacate Chambers if they wished to do so, and reconvened the meeting at 6:34 p.m.

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from MUR Mixed Use with Residential Emphasis District to MUB Mixed Use with Business Emphasis District for the South ½ of Lot 1, the West 5.72 feet of the North 66 feet of Lot 1, all of Lots 2, 3 and 4, Block 201, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Warren Avenue and E. 23rd Street) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the submittal of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Clean Water State Revolving fund for an amount not to exceed \$5 million for the Crow Creek Reclamation Facility Improvements Project and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to execute the application and all related loan documents. Motion (per Consent Agenda) carried. (#5407)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Fourth Filing, a replat of Lots 1-19, 21 and 23, Block 14 and Lots 1-27, Block 15, Saddle Ridge, Cheyenne, Wyoming (located east of and adjacent to Whitney Road, between Laramie Street and Countryside Avenue). Ms. Ash moved to adopt with staff recommendation #2, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. (5408)

[CA] Resolution authorizing the submittal of an application to the Wyoming Water Development Commission for additional grant funding for the Southern Water Transmission Main - Phase II Project in an amount not to exceed \$4,261,200 and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents. Motion (per Consent Agenda) carried. (#5409)

Resolution authorizing the Mayor to enter into negotiations for the purchase of Lot 1, Block 1, Marriott Subdivision, located near the intersection of West Lincolnway and Capitol Avenue, Cheyenne, Wyoming. Lea Bain requested the resolution not be adopted and offered suggestions regarding development of a strategic plan for the site, through use of a portion of funds from the economic development budget line item, or consideration of entering into a perpetual lease with the adjacent private property owner to discuss development options and lease provisions. She expressed concern

with the expense to potentially purchase the property at this time. Jack Whyatt concurred with Ms. Bain's comments; expressed concern with purchasing the property and whether the private property owner involved would be willing to sell for the appraised value amount, and commented that the City's involvement in private enterprise is not a wise use of dollars. Mr. Brown moved to adopt, seconded by Mr. Collins. Discussion included the following topics: Purpose of the resolution (i.e. authorize negotiation discussions only); need for short and long term plans for the property if the City was to acquire ownership of all of the area; property appraisal; difficulty in garnering interested developers due to private ownership involved in the area; estimated time frame for negotiations; erosion of sidewalk and adjacent building foundation concerns; City's legal condemnation authority; public sentiment; creating an environment to attract a private developer; concern with establishing a purchasing precedence involving property blight in the downtown area; monetary concerns; public vs. private development role and collaborative efforts; leveraging of resources, and topics that may be presented during negotiation discussions. During discussion Mayor Kaysen provided information in response to inquiries from Council members, including the following areas: Discussions and conversations that have occurred over the years since "the hole" was created (due to fire) with potential developers and interested individuals; lack of interest by developers; short term plan to install a fence/facade to screen property visually if the City acquires the property; potential long term/future property use, including partnering efforts; current evaluation and work to be done to stabilize the sidewalk; plans to update a previous property appraisal, and possible negotiation discussion topics. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Allen voting "no." (#5410)

Resolution authorizing the Mayor and City Clerk to enter into cooperative and other agreements as necessary to enable the City of Cheyenne to join with other participating Wyoming Municipalities in an application for State Small Business Credit Initiative funds available from the United States Department of Treasury pursuant to the Small Business Jobs Act of 2010, and repealing Resolution No. 5317. Mr. Brown moved to adopt, seconded by Mr. Pierson. Inquiry was made with regard to the difference between the proposed resolution involving a coalition of Wyoming municipalities and the previously adopted resolution (Resolution #5317), and compensation formula for services to be provided by Wyoming Smart Capital Network (WSCN). Randy Bruins, CEO, Cheyenne LEADS, explained details affiliated with the initial resolution (#5317), stating that since the time an application was submitted pursuant to that resolution the U.S. Treasury made substantive modifications to its program rules that resulted in LEADS and the Cheyenne-Laramie County Economic Joint Powers Board determining that the entities would no longer be able to assist as initially proposed. Diane Wolverton, Executive Director, Wyoming Smart Capital Network, discussed the amount of treasury funding available to municipalities and percentage of distribution payments that can be allocated for service fees. She stated the amount of fees will be set out in the affiliated coalition cooperative agreement and WSCN services agreement. Motion carried. Voting "yes" -- all members of the governing body. (#5411)

[CA] RESOLUTION - Authorizing a street name change from Archer Service Road to Hutchins Drive for the portion of the former I-80 Service Road located East of Industry Drive and South of Campstool Addition, 1st and 3rd filings, to the City of Cheyenne, Laramie County, Wyoming -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Adoption of the Cheyenne Metropolitan Area On Street Bicycle Plan and Greenway Plan update -- referred to Public Services Committee (sponsors - Ms. Ash, Mr. Brown, Ms.

Broyles, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to sign a Final Plat for Worldwide Subdivision, a portion of the NE¼ NE¼ of Section 11, T.13N., R.67W., of the 6th P.M., Cheyenne, Wyoming (located at the I-25/I-80 interchange) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to sign a Final Plat for Campstool Addition, Fourth Filing, situate in portions of the NE¼ of Section 31 and the NW¼ of Section 32, T.14N., R.65W., 6th P.M., and a replat of a portion of Campstool Addition, First Filing, Cheyenne, Wyoming (located north of and adjacent to I-80 Service Road, east of Industry Road and south of Venture Drive) -- referred to Public Services Committee (sponsor Ms. Ash).

[CA] RESOLUTION - Authorizing a special use approval for a creative sign program for Block 392, Original City, Cheyenne, Wyoming (The Dinneen Block located on Lincolnway between Pioneer and Thomes) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Agreement between the City of Cheyenne and Bill G. Hibbler for professional legal counsel assistance. Motion (per Consent Agenda) carried. (#5872)

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services. Motion (per Consent Agenda) carried. (#5873)

[CA] State Lease Agreement No. 8-09466 between the City of Cheyenne and the State of Wyoming, Department of Administration and Information, Construction Management, for rental of parking spaces located at the Cox Parking Structure. Motion (per Consent Agenda) carried (#5874)

[CA] Consideration of Grant Agreement for FAA Airport Improvement Program Project No. 3-56-0005-47 between the City of Cheyenne, County of Laramie, Cheyenne Regional Airport Board and the Federal Aviation Administration in an amount not to exceed \$4.7 million for taxiway rehabilitation. Motion (per Consent Agenda) carried. (#5875)

[CA] Use Agreement between the City of Cheyenne and Sierra Trading Post, Inc., to permit limited use of the public right-of-way for the installation of fiber optics, and setting a fee. Motion (per Consent Agenda) carried. (#5876)

Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal shelter services. Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was noted the substitute corrects the amount to be paid from \$26,067.33/month to \$26,599.33/month. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5877)

Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal control services. Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend

by substitute, seconded by Mr. Valdez. It was noted the substitute corrects the amount to be paid from \$15,732.83/month to \$15,200.83/month. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Mr. Pierson voting “no.” Main motion as amended carried. Voting “yes” -- all members of the governing body. (#5878)

[CA] Contract between the City of Cheyenne and Peak Wellness Center, Inc., Alcohol Receiving Center, for certain human services in the community. Motion (per Consent Agenda) carried (amount not to exceed \$73,098.00). (#5879)

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority, for certain human services in the community. Motion (per Consent Agenda) carried (amount not to exceed \$46,408.00). (#5880)

[CA] Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, for Juvenile Diversion Program services. Motion (per Consent Agenda) carried. (#5881)

[CA] Juvenile Accountability Block Grant Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, for partial funding of Municipal Juvenile Court staffing and services. Motion (per Consent Agenda) carried. (#5882)

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services. Motion (per Consent Agenda) carried (\$77,817.35 annual revenue to the City). (#5883)

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1 for School Resource Officers, for the 2012 - 2013 school year. Motion (per Consent Agenda) carried. (#5884)

[CA] Contract between the City of Cheyenne, Police Department Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and William Linden, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Leslie Burch, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Consideration of Bid #R-43-12 for furnishing twelve police vehicles for the Police Department from Spradley Barr Motors, Cheyenne, Wyoming (partial 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$285,444.00).

[CA] Consideration of Bid #R-1-13 for furnishing and installing 70 new Panasonic Arbitrator Cameras with supporting equipment for the Cheyenne Police Department (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bids from CDW Government, LLC, Vernon Hill, IL (amount not to exceed \$373,726.30) and L.A.W.S., Englewood, CO (amount not to exceed \$32,900.00).

[CA] Consideration of Bid #R-44-12 for furnishing 22 vehicles for City Departments from Wolf Auto Group (16), Pinedale, Wyoming, and Spradley Barr Motors (6), Cheyenne, Wyoming (partial 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bids from Wolf Auto Group for 16 vehicles (amount not to exceed \$309,924.00) and Spradley Barr Motors for 6 vehicles (amount not to exceed \$173,810.00; total amount not to exceed \$483,734.00).

[CA] Consideration of Bid #M-23-12 for a contract between the City of Cheyenne and Inman Roofing, Inc., Cheyenne, Wyoming, and Weathercraft Company, Scottsbluff-Gering, Nebraska, for Roof Replacement at Municipal Building and Civic Center (SLIB-12 funding) -- referred to Finance Committee.

[CA] Consideration of Bid #M-24-12 for a contract between the City of Cheyenne, Engineering Department, and Modern Electric Co., Casper, Wyoming, for Ridge Road Traffic Signal Replacement Project -- referred to Finance Committee.

[CA] Transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office by Steamboat's LLC d/b/a Steamboat's Wyoming Steak and Smoke House, 1947 Dell Range Boulevard, Cheyenne, Wyoming. (License currently held by Let'er Buck Investment Group LLC d/b/a Steamboat's, (address not yet issued) to be located off Gardenia Drive between Yellowstone Road and El Camino Real in Cathedral Commons). Motion (per Consent Agenda) carried.

Appointment of Brandon Kramer to the Downtown Development Authority Board. Mr. Collins moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made of the Re-Appointment of Jeannine R. Stallings to the Cheyenne Public Transit Advisory Board to be confirmed July 23, 2012.

Announcement was made that the Wyoming Down Syndrome Association will be sponsoring a Calcutta to be held Saturday, August 11, 2012 beginning at 7:00 p.m. at the Redwood Lounge, 2105 East Lincolnway, Cheyenne, Wyoming, in conjunction with the Wyoming Down Syndrome Buddy Walk and Dart Tournament (15% of proceeds to benefit the Association).

Under other business:

Matt Ashby, Planning Services Director, noted the attendance of the Historic Downtown Cheyenne Placemaking Project consultants, Elaine Carmichael and Tom Gallaher, at the meeting and provided a brief synopsis of the project, which was to identify strategies for invigorating the downtown area. He noted the final draft project report would be presented to City Council members at a work session the following day with other public meetings to present the report later in the week. Ms.

Carmichael and Mr. Gallaher each stated they enjoyed working on the project and expressed appreciation to those who helped with the project.

Rick Parish, Director of Parks and Recreation, advised the annual Wyoming Open Golf Tournament begins July 11th; noted the success of the recent annual Super Day event and referenced several softball tournaments that have been held.

Police Chief Brian Kozak reminded those present that the 3rd annual Neighborhood Night Out event would be held Tuesday evening, July 10th and, upon inquiry, advised he would provide information on each neighborhood event location to members of the governing body.

Ms. Ash commented on recent City Council agenda items involving the Unified Development Code and expressed concern with UDC interpretation by staff and developers.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:36 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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